

Brookline Commission For Diversity, Inclusion, and Community Relations (CDICR)

Sanctuary City Policy Working Group Meeting Minutes

Monday, June 12, 2017 6:30pm – 7:30pm

Town Hall – 5th Floor – School Committee Room

Present: Caitlin Hynes, Tony Naro, Jessica Chicco, Kelly Race, Manny Howard, C. Scott Ananian

Not Present: Dr. Lloyd Gellineau, Michael Gropman, Donna Healey, Kea van der Ziel, Selectman Bernard Greene

1. Motion by Tony Naro to approve 5.22.17 minutes. Four in favor, one abstention.
2. Tony Naro reviewed second draft of Immigration Raid Policy. With some minor edits, all voted in favor of Naro's Motion to approve the draft and send to the CDICR with a recommendation for approval. All in favor.
3. Discussion concerning the need for a policy prohibiting renting jail space to US Customs and Border Protection and ICE. Conversation led by C. Scott Ananian.
 - a. The Safe Communities Act allows for this.
 - i. Ananian made a statement at the public hearing on this and noted Brookline's work on this issue.
 - b. Chief O'Leary communicated to Ananian that he believes 43.0(3) covers this prohibition.
 - c. General consensus is that the Chief is correct and a separate policy is not needed.
 - d. Further discussion concerning the need to better inform the community and others about the great work Brookline has done regarding immigration policy. Ananian wondered if a landing page on the Town's website would be helpful. Naro identified something close to this on the Town's homepage already and perhaps it could be improved upon. Jessica Chicco suggested that we finalize our work and then take up this discussion. Chicco also suggested connecting with MIRA to further communicate the Town's policies to the broader immigrant population.
4. Traffic enforcement discussion led by Jessica Chicco.
 - a. No strong recommendation regarding a change in policy. June 3, 2016 memo from the Chief about exercising discretion when to arrest or not was discussed. Could it be improved in any way? Crafting a policy would be difficult as it could result in profiling, go against advice of immigration advocates, etc. Should the working group recommend that the Chief say that "citation is should be the default?"
 - b. Tony argued against limiting discretion. Cited to last several years of data which shows a decline in arrest rates as well as motor vehicle citations. He also cited to police handling of persons found to be violating 90-10 (Operating Without a Valid License) which showed that in most cases, at least half of those found to be violating this law were not arrested and given civil citations.
 - c. Manny Howard noted the law applies to everyone. Chicco agreed but noted that we need to figure out whether the law is having a disparate impact on any protected classes.

- d. Kelly Race raised the question as to why we were so focused on this one provision of the motor vehicle code. Ananian and others noted that this law was identified as having a likelihood of effecting undocumented immigrants because they cannot obtain licenses. Naro stated that while he is of the belief that the Brookline Police are making great progress in reducing the number of arrests, and the OWL data does not show that there is an issue with discretion, the conversation is an important one to have.
- 5. Meeting adjourned with discussions to continue at next meeting. Naro will ask Chief for statistics for 1.1.17-6.12.17 to see how the Town is doing with arrests, motor vehicle violations, and 90-10 arrests.
- 6. Next meeting, July 10, 2017 6:30pm-7:30pm, location TBD.